

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: September 16, 2026 TIME: 10:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

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LINE #	CASE #	CASE TITLE	RULING
LINE 1-2	25PR201011	In the Matter of THE AMY N. BOYCE REVOCABLE TRUST	Demurrer; Motion to Strike Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 3	25PR201011	In the Matter of THE AMY N. BOYCE REVOCABLE TRUST	Amended Petition to Cancel Deed

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Calendar Line 1 - 2

Case Name: In the Matter of THE AMY N. BOYCE REVOCABLE TRUST

Case No.: 25PR201011

INTRODUCTION

On May 9, 2023, Patrick Ng (“Respondent”), as attorney in fact for Amy Boyce (aka Amy Ng) (“Decedent”), filed a complaint in docket 23CV416112, entitled *Ng v. Marston and Zheng*. On January 26, 2024, he filed the currently-operative second amended complaint (“SAC”). In the SAC, Respondent alleged that Hongyi Marston (aka Hongyi Xie) (“Petitioner”) and Jin Rong Zheng (“Zheng”) befriended Decedent, who was blind and suffered from diminished mental capacity, and convinced her to deed the real property located at 20661 McClellan Road, Cupertino (the “McClellan property”) to “Defendants” for no consideration. (SAC, ¶¶ 1, 3, 4, 11, 14.) The McClellan property was actually an asset of the Amy Ng Revocable Trust dated October 21, 2010 and restated on February 10, 2021, of which Respondent is the trustee. (SAC, ¶¶ 2, 12.) The SAP stated causes of action against Petitioner, Zheng, and one of Decedent’s estate planning attorneys, Anthony Bayard De Volo (“De Volo”) for: (1) cancellation of deed, (2) financial abuse and elder abuse, (3) financial abuse and elder abuse (Petitioner and Zheng), (4) breach of fiduciary duty (De Volo only).

Decedent passed away in May 2025.

On October 1, 2025, Petitioner filed a petition in the instant case (“Petition”), asserting that Decedent executed a trust, the Amy N. Boyce Revocable Trust, dated July 14, 2016, which left to Petitioner the real property located at 1355 Dunnock Way, Sunnyvale (the “Dunnock property”). (Petition, ¶¶ 2, 5.) However, Respondent unduly influenced Decedent causing her to deed the Dunnock property to him before her death. (Petition, ¶ 10.) That petition states causes of action for: (1) cancellation of deed, (2) undue influence, (3) improper trust amendment, (4) return of trust property (Prob. Code, §§ 850, 859), (5) surcharge of trustee and constructive trust, (6) removal of trustee, (7) accounting, (8) attorney fees (Prob. Code § 859), (9) prohibition of expenditure of trust funds for defense.

On April 15, 2026, the Court (Hon. Charles Adams) issued an order denying Respondent’s motion to strike the entirety of the petition and sustaining Respondent’s demurrer to the petition and each cause of action therein with 20 days’ leave to amend. Respondent served the notice of entry of order on April 22, 2026.

On May 6, 2026, Petitioner filed a first amended petition (“FAP”), stating causes of action for (1) cancellation of deed, (2) undue influence, (3) improper trust amendment, (4) return of trust property (Prob. Code, §§ 850, 859), (6) removal of trustee, and (7) accounting.¹

Currently before the Court are Respondent’s demurrer and motion to strike targeting the FAP. Petitioner has opposed each motion and Respondent has filed replies.

¹ There is no fifth cause of action in the FAP. The caption of the FAP lists 10 “causes of action” but only six of them are labelled causes of action contained in the FAP.

DISCUSSION

I. RESPONDENT'S REQUESTS FOR JUDICIAL NOTICE

In support of both the demurrer and the motion to strike, Respondent requests judicial notice of the same four items: (1) the Court's Order re: (1) Respondent's Motion to Strike, (2) the SAC in docket 23CV416112, (3) Petitioner's Petition filed October 1, 2025, and (4) Respondent's Amended Responses to Petitioner's Form Interrogatories Set One in docket 23CV416112.

The court GRANTS judicial notice of items 1 through 3, with the caveat that, while the court is free to take judicial notice of the existence of a document in a court file, it may not take judicial notice of the truth of hearsay statements contained therein. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

Petitioner objects to the request for judicial notice of item 4 on the following grounds: "Evidence Code sections 1401, 452, and 453; lack of foundation and authentication; no proper subject of judicial notice; relevance; improper attempt to introduce disputed evidence on demurrer." (Objection to Request for Judicial Notice in Support of Demurrer, p. 2:17-19.) The Court agrees with Petitioner that no authenticating declaration was provided with the request for judicial notice of item 4. In reply, Respondent has provided the declaration of his counsel stating, "The interrogatory response attached hereto was served in the case displayed on its caption page of which I am now attorney of record and of which I am familiar with the file records." (Declaration of Dennis S. Zell in Support of Motion to Strike and Second Demurrer, ¶ 5.)

"It is true that a court may take judicial notice of a party's admissions or concessions, but only in cases where the admission 'cannot reasonably be controverted,' such as in answers to interrogatories or requests for admission, or in affidavits and declarations filed on the party's behalf. (*Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990; see also *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605 ['The court will take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court.'].)" (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485 (*Arce*)). Here, Respondent argues that the interrogatory response is inconsistent with what is pled in the FAP. Accordingly, the Court GRANTS judicial notice of item 4.

II. DEMURRER

A. LEGAL BACKGROUND

As relevant to the instant case, "[t]he party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state facts sufficient to constitute a cause of action[;] (f) The pleading is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." (Code Civ. Proc., § 430.10,

subds. (e)&(f).)² A demurrer may be utilized by “[t]he party against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (§§ 430.10, 430.50, subd. (a).)

The Court in ruling on a demurrer treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.)

B. MERITS OF THE DEMURRER

Respondent demurs to the first through fourth causes of action on the grounds of uncertainty (§ 430.10, subd. (f)) and failure to state a claim (§ 430.10, subd. (e)). Respondent demurs to the sixth and seventh causes of action on the ground of failure to state a claim.

i. THIRD CAUSE OF ACTION

At the outset, the Court notes that the demurrer makes no arguments about any specific causes of action except for the third cause of action. As to the third cause of action, Respondent argues that Petitioner has failed to comply with the Court’s order on Respondent’s prior demurrer. The Court finds this argument, which is also raised in the motion to strike, better addressed in the context of the motion to strike. Accordingly, the Court **OVERRULES** the demurrer on this ground.

ii. ALL CAUSES OF ACTION

As to the rest of the demurrer, demurrers for uncertainty are disfavored. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) “ ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’ [Citation.] A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge. [Citation.]” (*Ibid.*) Nonetheless, Respondent has argued that each of his uncertainty arguments also constitute failure to state a claim within the meaning of section 430.10, subdivision (e).

Respondent contends that the FAP is deficient in failing to allege various facts in support of its theory of undue influence. Respondent starts by taking the position that there are

² All further undesignated statutory references are to the Code of Civil Procedure.

three types of undue influence listed in Civil Code section 1575, which provides, “Undue influence consists: 1. In the use, by one in whom a confidence is reposed by another, or who hold a real or apparent authority over him, of such confidence or authority for the purpose of obtaining an unfair advantage over him; 2. In taking an unfair advantage of another’s weakness of mind; or, 3. In taking a grossly oppressive and unfair advantage of another’s necessities or distress.” (Civ. Code, § 1575, subd. (1).) He asserts that the FAP fails to specify which theory of undue influence it relies on. He further contends that the FAP fails to state a cause of action for undue influence or is fatally uncertain because it does not allege what he did and when.

“Undue influence is pressure brought to bear directly on the testamentary act, sufficient to overcome the testator’s free will, amounting in effect to coercion destroying the testator’s free agency. [Citation.]” (*Rice v. Clark* (2002) 28 Cal.4th 89, 96.) Undue influence may be established by a variety of circumstances, including evidence of control over the decedent’s business and/or financial affairs, dependency of the decedent on the care and attention of the beneficiary, or domination on the part of the beneficiary and subserviency on the part of the decedent. (*Estate of Baker* (1982) 131 Cal.App.3d 471, 481-482.) For pleading purposes, “it is not sufficient for the pleader to merely allege the legal conclusion of undue influence, but facts must be pleaded from which the court may determine as a matter of law whether the facts so pleaded constitute the alleged undue influence.” (*In re Estate of Graves* (1927) 202 Cal. 258, 263.)

Welfare and Institutions Code section 15610.70 provides:

(a) “Undue influence” means excessive persuasion that causes another person to act or refrain from acting by overcoming that person’s free will and results in inequity. In determining whether a result was produced by undue influence, all of the following shall be considered:

(1) The vulnerability of the victim. Evidence of vulnerability may include, but is not limited to, incapacity, illness, disability, injury, age, education, impaired cognitive function, emotional distress, isolation, or dependency, and whether the influencer knew or should have known of the alleged victim’s vulnerability.

(2) The influencer’s apparent authority. Evidence of apparent authority may include, but is not limited to, status as a fiduciary, family member, care provider, health care professional, legal professional, spiritual adviser, expert, or other qualification.

(3) The actions or tactics used by the influencer. Evidence of actions or tactics used may include, but is not limited to, all of the following:

(A) Controlling necessities of life, medication, the victim’s interactions with others, access to information, or sleep.

(B) Use of affection, intimidation, or coercion.

(C) Initiation of changes in personal or property rights, use of haste or secrecy in effecting those changes, effecting changes at inappropriate times and places, and claims of expertise in effecting changes.

(4) The equity of the result. Evidence of the equity of the result may include, but is not limited to, the economic consequences to the victim, any divergence from

the victim's prior intent or course of conduct or dealing, the relationship of the value conveyed to the value of any services or consideration received, or the appropriateness of the change in light of the length and nature of the relationship.

(b) Evidence of an inequitable result, without more, is not sufficient to prove undue influence.

Here, the FAP alleges that Decedent was vulnerable due to her advanced age, emotional dependence on her family, and isolation from her grandchildren (Respondent's children). (FAP, ¶ 6.) Respondent told Decedent that she would die before seeing her grandchildren. (FAP, ¶ 8.) Decedent's trust originally provided that Petitioner would receive the Dunnock Property but Respondent convinced Decedent to change her estate plan by transferring the Dunnock Property out of the trust by threatening not to allow Decedent to see her grandchildren unless she cooperated. (FAP, ¶¶ 4, 10, 12.) Respondent made the appointment with the drafting attorney, drove Decedent to that appointment, and was present when Decedent executed the documents effecting the transfer of the Dunnock Property out of the trust. (FAP, ¶ 45.)

Respondent argues that the FAP is uncertain with respect to many specific allegations. For example, he contends that Petitioner alleges in paragraph 7 that "As an elderly woman who would die within approximately five years of the transfer of the Dunnock Property, Amy reasonably feared that any prolonged loss of contact with her grandchildren could become permanent. To a person in Amy's position, the threat of being cut off from her grandchildren was not a minor family disagreement; it was a devastating emotional threat that struck at the core of remaining life, family identity, and emotional security." Respondent asserts that the FAP is uncertain because it does not state how Respondent or Decedent knew that Decedent would die within five years. As another example, Respondent argues that Paragraph 15 alleges, "The transfer was also procured in secrecy. Patrick did not alert Hongyi, even though the Dunnock Property had been designated for Hongyi under the trust." He contends that this allegation is uncertain because it does not explain how the transfer was accomplished in secrecy or why Petitioner was entitled to notice.

Respondent points to no authority indicating that Petitioner must plead her allegations at such a granular level. Instead, the general rule is that "[a] complaint must contain '[a] statement of the facts constituting the cause of action, in ordinary and concise language.' (Code Civ. Proc., § 425.10, subd. (a)(1).) The facts pleaded must address each essential element of the cause of action; these elements are determined by the substantive law that defines the claim or theory of relief." (*Martinez v. City of Clovis* (2023) 90 Cal.App.5th 193, 253.) "The rule which requires allegations of facts where undue influence is the issue does not require the allegation of evidentiary facts but only that ultimate facts be pleaded; it does not exclude conclusions of fact but only conclusions of law. [Citations.]" (*Krug v. Meeham* (1952) 109 Cal.App.2d 274, 277.)

In *Krug v. Meeham*, the Court of Appeal summarized two cases similar to the instant case and explained that, in both cases, the reviewing courts had found the allegations of undue influence sufficient:

In *Murphy v. Crowley*, 140 Cal. 141, an action to cancel a deed on the ground of undue influence, it was alleged that the title to the property in question was

taken in the name of the defendant Margaret Crowley “at her instance and at her dictation, the said Daniel being compelled thereto, and overpowered by the dominant will and aggressive energy of the said defendant, Margaret E. Crowley,” and that from the date of their marriage down to his death the defendant, Margaret, “exercised a controlling influence over the mind and actions of the said Daniel, managed exclusively his property, and he was under her complete subjection and domination,” which allegations were held sufficient. In *Stohr v. Stohr*, 148 Cal. 180, also an action to cancel a deed on the ground of undue influence, the allegations were that the defendant lived with the grantor and was her confidential business agent and had an intimate and confidential association and relation with her and had her trust and confidence and was able to and did exercise great influence and control over her will; that at the time of signing the deed the defendant, with intent to take an unfair advantage of the weakness of mind of the said grantor and gain possession of her property, induced and persuaded her to make and acknowledge the deed, and those allegations were held sufficient.

(*Krug v. Meeham*, *supra*, 109 Cal.App.2d at pp. 277-278.) The allegations from the FAP above are in line with these authorities.

Moreover, the FAP speaks to each of the four indicia of undue influence. As to Decedent’s vulnerability, the FAP pleads that Decedent was aged and lonely and valued her relationship with her grandchildren. (FAP, ¶ 6.) As to Respondent’s apparent authority, the FAP pleads that he, as the father of Decedent’s grandchildren, had the authority to prevent them from seeing Decedent. (FAP, ¶¶ 9-10.) It also pleads that Respondent is Decedent’s only child and caretaker. (FAP, ¶ 42.) As to Respondent’s actions and tactics, the FAP alleges that Respondent exploited Decedent’s love for her grandchildren to cause her to transfer the Dunnock Property. (FAP, ¶¶ 12-13.) It also states that Respondent made the appointment with the attorney to execute the deed transferring the Dunnock Property; that he drove Decedent to the appointment; and that he was present for the execution. (FAP, ¶ 45.) As to an inequitable result, the FAP pleads that Decedent wanted Petitioner to receive the Dunnock Property and, therefore, the transfer of the Dunnock Property out of the trust and to Respondent was a deviation from Decedent’s intended estate plan. (FAP, ¶¶ 16-17.)

Respondent argues that the dates when material facts occurred must be pled and the FAP fails to do so. Specifically, he asserts that the FAP fails to allege when he made statements to Decedent indicating that she could not see her grandchildren if she did not transfer the Dunnock Property out of the trust. But, “allegations should be liberally construed in the testing of a complaint for adequacy against a demurrer, particularly where the facts as to which the complaint is uncertain are presumptively within the knowledge of the defendant.” (*Childs v. Cal.* (1983) 144 Cal.App.3d 155, 160.) “Direct evidence as to undue influence is rarely obtainable and hence a court or jury must determine the issue of undue influence by inferences drawn from all the facts and circumstances.” (*Lintz v. Lintz* (2014) 222 Cal.App.4th 1346, 1355.)

The Court finds the allegations of the FAP sufficient to survive the demurrer on the grounds of both uncertainty and failure to state a claim. Consequently, the demurrer is **OVERRULED** in its entirety.

III. MOTION TO STRIKE

A. LEGAL BACKGROUND

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc. § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (§ 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (§ 437, subd. (a).)

B. MERITS OF THE MOTION

i. THIRD CAUSE OF ACTION

Respondent first argues that the third cause of action should be stricken because the court previously sustained his demurrer to that cause of action and Petitioner has not meaningfully amended the third cause of action. In its order, the Court sustained the demurrer to the third cause of action finding that the cause of action was based on Decedent's alleged failure to follow the procedures to amend or revoke the trust but, on its face, the trust language did not require gifts of trust property to follow such procedures.³

³ The entirety of the Court's discussion on the third cause of action is reproduced below.

The third cause of action alleges that Decedent improperly transferred the Dunnock property out of the trust without following the procedures for amending the trust. Respondent contends that the third cause of action fails because the trust allows the property to be gifted without following the procedures for amendment. As mentioned above, the trust instrument states, "The procedural requirements of this division for revoking or amending trusts do not apply to gifts of trust property made by the settlor that would be valid if the gifted property was not subject to this trust. Any such gift revokes the trust as to the gifted property." (Petition, Ex. A [Amy N. Boyce Revocable Trust], § XI(D).)

Petitioner does not directly respond to this argument but she contends that a finding of ademption would be premature because she alleges that the deed that transferred the property out of the trust was procured via undue influence. The court rejects this argument in the context of the third cause of action. The court agrees that the undue influence allegations, if proven, would invalidate the deed and, therefore, the transfer of the property may be set aside. But if the deed were found to be valid, based on the language of the trust described above, the gift would have validly revoked the trust as to that specific gift of the Dunnock property. In other words, assuming that the deed is valid, the trust was validly revoked. Assuming, on the other hand, that the deed is void for undue influence, it would not have the effect of revoking the trust as to that gift. Under those circumstances, the issue is not that the deed failed to validly amend the trust, but that the deed itself is voidable.

The allegations contained within the third cause of action have not meaningfully changed from the original Petition to the FAP. (Compare Petition, ¶¶ 36-42 with FAP, ¶¶ 50-56.) In both pleadings, Petitioner alleges that the trust contained only two assets, two real properties, one of which was left to Petitioner and one of which was left to Respondent. (Petition, ¶ 37; FAP, ¶ 51.) Thus, the transfer of the Dunnock Property out of the trust had the effect of disinheriting Petitioner. (Petition, ¶¶ 39, 41-42; FAP ¶¶ 53, 55-56.)

In response to the demurrer and motion to strike, Petitioner argues that the third cause of action is an alternative request for a determination that no valid gift or revocation of trust occurred due to Respondent's alleged undue influence. Notably, Petitioner has removed the allegation in the original Petition stating, "Petitioner alleges that the purported Deed does not satisfy the Trust's procedural requirements for revoking or amending a trust." (Petition, ¶ 14.) The FAP no longer mentions any purported failure to comply with the procedures for amending or revoking the trust. But, the third cause of action is still labelled, "DETERMINATION THAT THE TRANSFER OF THE DUNNOCK PROPERTY OUT OF THE TRUST IS VOID – TRUST AMENDMENT." (FAP, p. 11:15-17.) Petitioner appears to contend that the third cause of action is based on the allegations of undue influence, which are incorporated into the third cause of action by reference, (FAP, ¶ 57), rather than the failure to comply with the procedures required to amend or revoke the trust. If that is the case, the third cause of action is merely duplicative of the second cause of action, which seeks to invalidate the transfer of the Dunnock Property out of the trust based on undue influence. Under these circumstances, the Court finds that the third cause of action either is not adequately amended based on the Court's prior order sustaining the demurrer or it is duplicative of the second cause of action such that it is subject to a motion to strike. The motion to strike is GRANTED as to the third cause of action WITHOUT LEAVE TO AMEND.

ii. **ENTIRETY OF THE FAP**

Respondent also argues that the entire FAP is subject to striking as a sham pleading. As mentioned above, Petitioner and Respondent are involved in a civil action in docket 23CV416112 in which Respondent alleges that Petitioner and another person engaged in elder abuse against Decedent. Respondent contends that Petitioner's allegations of undue influence in the FAP contradict one of her responses to Respondent's special interrogatories and thus, the undue influence allegations are a sham. Specifically, Respondent asserts that Petitioner

In the absence of any argument regarding how the trust was improperly amended in light of the trust language quoted above, the court finds that the third cause of action is subject to demurrer. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"]; see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [failure to challenge a contention in a brief results in the concession of that argument].)

The demurrer is SUSTAINED as to the third cause of action with 20 days' leave to amend.

(April 15, 2026 Order, pp. 13:21-14:23.)

admitted in response to the special interrogatory at issue that Decedent transferred the Dunnock Property to Respondent for tax purposes rather than undue influence as Petitioner currently claims in the FAP.

“Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. (See *Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743 [affirming an order sustaining defendants’ demurrer without leave to amend when the plaintiff filed an amended complaint omitting harmful allegations from the original unverified complaint]; see also *Colapinto v. County of Riverside* (1991) 230 Cal. App. 3d 147, 151 [‘If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations.’].) A noted commentator has explained, ‘Allegations in the original pleading that rendered it vulnerable to demurrer or other attack cannot simply be omitted without explanation in the amended pleading. The policy against sham pleadings requires the pleader to explain satisfactorily any such omission.’ [Citation.]” (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.)

“This exception applies not only to an amended pleading filed in the same action, but also to the first pleading filed in a separate action: ‘Both trial and appellate courts may properly take judicial notice of a party’s earlier pleadings and positions as well as established facts from both the same case and other cases. [Citations.] The complaint should be read as containing the judicially noticeable facts, “even when the pleading contains an express allegation to the contrary.” [Citation.] A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false. [Citation.] Likewise, the plaintiff may not plead facts that contradict the facts or positions that the plaintiff pleaded in earlier actions or suppress facts that prove the pleaded facts false. [Citation.]’ [Citation.]” (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344.)

As discussed above, the Court may take judicial notice of discovery responses on demurrer to determine if they are inconsistent with allegations pled in the challenged petition. (*Arce, supra*, 181 Cal.App.4th at p. 485.)

In response to the interrogatory, Petitioner stated

Amy stated that while she fully intended to give Responding Party a house, it would be too expensive to do at that time because the taxes would be too high, so Amy urged them to remain in their current residence “a little bit longer.” Amy stated that if she gave them a house later, the taxes would be much lower. Sometime between 2010 and 2016, Amy established a living trust with her longtime attorney De Volo wherein she made Responding Party the beneficiary of a house located at 1355 Dunnock Way, Sunnyvale, CA 94087. On July 26, 2016, Amy recorded a deed with the Santa Clara County Recorder’s Office transferring title of 1355 Dunnock Way, Sunnyvale, CA 94087 into her trust. Later, when the IRS announced higher estate and gift tax limits for 2020, Amy, along with her son Patrick updated her living trust sometime in 2020 and on December 28, 2020, deeded the property to Patrick Ng.

(Respondent's Request for Judicial Notice, Ex. 4.)⁴

The above-quoted material cannot be construed as an admission that Decedent transferred the Dunnock Property to Respondent for tax purposes. In fact, it appears to state just the opposite, namely, that Decedent told Petitioner she would gift her a property but that she was waiting until the "taxes would be lower." Then, when the estate and gift tax limits rose, instead of gifting the property to Petitioner as promised, Decedent instead gifted the property to Respondent. Accordingly, the Court rejects Respondent's argument on this point.

Finally, Respondent also contends that the FAP alleges that Petitioner did not know of the transfer of the Dunnock Property to Respondent until July 21, 2025 when Respondent sent out a trustee's notice. (See FAP, ¶ 25 ["On or around July 21, 2025, Petitioner received 'NOTIFICATION BY TRUSTEE PURSUANT TO CALIFORNIA PROBATE CODE § 16061.7' which is when Petitioner discovered the transfer of Dunnock to Respondent.'].) Respondent asserts that this contradicts with the interrogatory response above, which was signed on May 15, 2025, and which clearly indicates Petitioner's knowledge of the transfer. (Respondent's Request for Judicial Notice, Ex. 4 [stating that Decedent had deeded the Dunnock Property to Respondent].) While the Court agrees with Respondent that the allegation that Petitioner discovered the transfer of the Dunnock Property in July 2025 is false, that falsity does not justify striking the entire FAP and Respondent does not request that the Court strike any particular paragraph of the FAP.

The motion to strike is DENIED except to the extent it targets the third cause of action.

CONCLUSION

The demurrer is OVERRULED in its entirety. The motion to strike is GRANTED as to the third cause of action WITHOUT LEAVE TO AMEND. The motion to strike is DENIED in all other respects.

The Court will prepare the final order.

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⁴ The text of the special interrogatory itself is not in the record.